

Court No. - 10

Case :- WRIT - C No. - 53178 of 2015

Petitioner :- Ruchi Agrawal

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Rajendra Prasad Tiwari, Vinay Kumar Tiwari

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Arun Tandon, J.

Hon'ble Ashwani Kumar Mishra, J.

Heard learned counsel for the parties.

From the records of the present writ petition we find that in respect of consumption of electricity by the petitioner from the installation provided to his premises, a compounding fee of Rs.12,000/- in respect of theft was deposited on 07.07.2014 and the assessed amount of Rs.76,091/- was also deposited on the same date.

Because of deposit of the compounding fee the offence of theft of electricity, as alleged against the petitioner, was compounded in exercise of powers under Clause 152 of the Electricity Supply Code, 2005.

The petitioner, however, set up a claim that this sum of Rs.12,000/-, which he had deposited towards compounding fee, must be returned to him as it was a double deposit. Since his representation has not been considered he approached this Court by means of Civil Misc. Writ Petition No. 42324 of 2014. The writ petition was disposed of vide order dated 14.08.2014 permitting the petitioner to represent his grievance before the Executive Engineer.

The Executive Engineer in the order impugned has recorded a categorical finding that a sum of Rs.12,000/- was deposited towards compounding of the charge of theft of electricity. The question to return of the said money does not arise.

We see no reason to interfere with the order of the Executive Engineer, in the facts of the case.

Writ petition is **dismissed**.

Order Date :- 16.9.2015

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